

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jaimie Vernon	Team: Squad #04	CCRB Case #: 201412767	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 12/29/2014 8:30 AM	Location of Incident: Over the telephone; 123rd precinct stationhouse	18 Mo. SOL 6/29/2016	Precinct: 123
Date/Time CV Reported Mon, 12/29/2014 5:06 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 12/29/2014 5:06 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Kristen White	00790	935964	123 DET

Officer(s)	Allegation	Investigator Recommendation
A . POF Kristen White	Abuse: On December 28, 2014, over the telephone, Det. Kristen White threatened to notify Administration for Children's Services.	A . Exonerated
B . POF Kristen White	Discourtesy: On December 29, 2014, inside the 123rd precinct stationhouse, Det. Kristen White spoke discourteously to § 87(2)(b)	B . Unsubstantiated

Background Information

On December 26, 2014, complaint report #§ 87(2)(b) was generated, formally documenting probable cause for the arrest of § 87(2)(b) on charges of § 87(2)(b) (Encl. 6C-E).

Civilian Statement

On December 28, 2014, Det. Kristen White, who was assigned the above-referenced case, called § 87(2)(b) at her home at § 87(2)(b) in Staten Island. Det. White, calling from the 123rd precinct stationhouse, told § 87(2)(b) that she was going to be arrested on § 87(2)(b) and should preferably come to the stationhouse. Det. White intimated that § 87(2)(b) should attempt to make some arrangement for someone to watch her children during the time she would be in custody. She told § 87(2)(b) that if she would not come to the stationhouse to be arrested, she would have to notify the Administration for Children's Services (ACS), who would take her children into their custody (**Allegation A**).

§ 87(2)(b) went to the 123rd precinct stationhouse the next day, December 29, 2014, and surrendered herself to Det. White, who processed her arrest. As she fingerprinted § 87(2)(b) Det. White exclaimed, "I hate your fucking hands!" She went on to tell § 87(2)(b) that she needed "cream to put on [her] fucking hands" (**Allegation B**).

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
A request for any notices of claim related to the incident was made on January 21, 2015, and any results will be added to the case when they are received.

Civilian and Officer CCRB Histories

§ 87(2)(b) has made no previous CCRB complaints (Encl. 3A). Det. White has been a member of the service for ten years and has no substantiated CCRB allegations (Encl. 2A). § 87(2)(g)

Potential Issues

§ 87(2)(b), § 87(2)(g)

Findings and Recommendations

Allegation A -Abuse of Authority: Det. Kristen White threatened to notify the Administration for Children's Services.

It is undisputed that Det. White, when calling § 87(2)(b) discussed her children and suggested that § 87(2)(b) find someone to look after her children during the time she would be in police custody. It is additionally undisputed that Det. White told § 87(2)(b) that she may have to notify ACS in regard to § 87(2)(b)'s arrest § 87(2)(b)'s in-person statement, Encl. 5B; Det. White's statement, Encl. 6G-H). § 87(2)(g)

§ 87(2)(b) in § 87(2)(b)'s testimony, Det. White threatened to call ACS to take her children if she did not surrender herself. Conversely, Det. White claimed that she explained to § 87(2)(b) that if she could find no one to look after her children during the time she would be in custody, she would have to notify "the proper authorities," who would take her children into their custody during the time she would be in police custody. She clarified in her interview that she was referring to ACS. § 87(2)(g)

The NYPD Patrol Guide procedure 215-03, "Emergency Removals of Investigation and Reporting of Abused, Neglected, or Maltreated Children," states that a uniformed member of service must, if a child is found to be in imminent danger, "report the findings to the appropriate authorities." Referring to section 1012 of the Family Court Act, the procedure defined a "neglected child" as one who, among other things, is in imminent danger of being impaired in their physical, mental, or emotional condition as a result of their parent or guardian failing to "[provide] the child with proper supervision or guardianship..." (Encl. 1A-L).

In her interview, § 87(2)(b) stated that she had no one living near her to take care of her children in the event of her arrest. The closest person, her mother, lives too far away to be able to take temporary custody of the children under such short notice.

In her interview, Det. White explained that she had previously called § 87(2)(b) in regard to the complaint she lodged against § 87(2)(b). § 87(2)(b) told the detective that § 87(2)(b) was a single stay-at-home mother of three children, including one about eighteen months old, and that she had no relatives or friends nearby who could look after her children if she were to be arrested.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation B – Discourtesy: Det. Kristen White spoke discourteously to § 87(2)(b)

It is undisputed that Det. White fingerprinted § 87(2)(b). However, contrary to § 87(2)(b)'s statement, Det. White denied that she told § 87(2)(b) that she hated "[her] fucking hands" and that she needed "cream to put on [her] fucking hands" § 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date